Defence Strategy Report

Curatela Fallimento Agricola Gavioli S.r.l.
v. Naissance (UK) Ltd

Tribunale di Siena, Sezione Unica Civile — R.G. 2505/2025

Prepared for: Grahame McGirr

Amount in dispute: EUR 57,536.75 + interest from 01.07.2025 + costs

Costituzione deadline: 04 May 2026

Hearing: 14 May 2026, Judge Marianna Serrao

Date of report: 18 April 2026

Naissance UK Ltd — Defence Strategy Report

Prepared for: Grahame McGirr, Director, Naissance UK Ltd **Prepared by:** Craig Malenga **Date:** 18 April 2026 (this revision incorporates the external second-opinion review) **Case:** Curatela Fallimento Agricola Gavioli S.r.l. v. Naissance UK Ltd — Tribunale di Siena, Sezione Unica Civile, R.G. **2505/2025 Amount claimed:** €57,536.75 + legal interest + costs **Costituzione deadline:** 04 May 2026 **Hearing:** 14 May 2026 at 10:00, Judge Marianna Serrao

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1. Executive summary — read this first

A bankruptcy trustee in Siena is suing **Naissance UK Ltd** for **€57,536.75**. The claim boils down to simple arithmetic: the trustee says Naissance received €629,975.04 via the foreclosure on the Chianciano property, but was only admitted to the bankruptcy's liabilities for €572,438.29 — so the difference must be returned. Two Italian Supreme Court cases (Cass. 23482/2018 and

12673/2022) support the trustee's general proposition. The claim is therefore **real and needs a proper defence**, not a confident dismissal.

What this case really turns on — the one question to hold in your head: *did Naissance receive more than €572,438.29 through the procedure?* If yes, some restitution is probably due. If the real accounting brings that figure close to €572,438.29, the claim collapses. Everything else — the legal theory, the finality argument, Belardi's clerical-error argument — is supporting infrastructure for that one question.

We have four realistic ways to respond. In summary:

#	Approach	Pay-off	Risk
A	Your own instinct — "I'm owed €1.188m, only got back half"	Emotionally compelling	Legally weak alone; best used as a settlement lever
B	ChatGPT's reading — "distribution was final, claim is weak"	Simple to plead	Ignores the exact case law the trustee cites
C	Belardi's line — "clerical error in the Istanza" + Fiorilli fallback	Real legal hook; professionally credible	Addresses the framing, not the substantive principle; leaves the €30k double-count on the table
D	**Recommended hybrid** — three focused battlegrounds (€30k accounting + rigidity of €572k admission + component-by-component arithmetic challenge), with Belardi's errore-materiale as supporting and parallel settlement	Highest probability of a good outcome; settlement target €25–35k	Higher legal fees; still a real loss tail

Recommended action this week:

1. Instruct Avv. Belardi in writing that you approve his direction and want him to sharpen the defence around **three focused battlegrounds**: (i) the **€30,000 accounting treatment** (same €30k went out from you in June 2018 and came back at the 2019 distribution — the trustee's inclusion of it in the "received" figure can be challenged), (ii) the **rigidity of the €572,438.29 admission** (how strictly is the 2019 admission order binding, and does the Istanza's clause 3 vs clause 4 inconsistency weaken its weight?), (iii) **component-by-component challenge to the trustee's €629,975.04 arithmetic**, not a broad legal theory.
2. Authorise Belardi to open a parallel settlement channel with the curator at €15–20k opening, €25–35k target, **€45k walkaway**.
3. Belardi to verify the two Cassazione citations in full text and confirm the procedural vehicle and filing deadline.
4. Belardi to **quietly prepare** the Fiorilli PEC *diffida* this month — draft it now, ready to send if needed, because limitation timing matters.

Realistic outcome profile (executing the recommended approach):

- Full win (claim dismissed, costs recovered): **10–20%**
- Partial win (settlement or reduction to €25–35k range): **50–60%**
- Full loss (pay ~€57k + interest + costs ≈ €70–85k): **25–35%**

These are more grounded numbers than an initial read-through suggested, incorporating the external review: the €30,000 double-count is a very strong argument but **not automatic** — the trustee can reply that the €30k was still money received through the procedure, so it counts on a gross-flow basis. Whether the court reads restitution as *gross flows* or *net economic benefit* will significantly affect the outcome. Similarly, the three quantum cuts (€30k + €3,932 + €4,761.47) are not equally strong and should not be assumed to land cumulatively.

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2. What has happened — the story so far

2.1 The underlying credit (2010–2017)

In December 2010, **Banca CRAS** (Credito Cooperativo Toscano-Senese) granted a mortgage loan to **Agricola Gavioli S.r.l.**, secured by a first-rank voluntary mortgage over the Chianciano Terme property on Strada Statale 146.

In July 2017, the credit was sold twice on the same day:

1. **Banca CRAS → Argo Ge.Re.Cre. S.r.l.**
2. **Argo Ge.Re.Cre. → Naissance (UK) Ltd**

Naissance thereby acquired a credit of **€1,188,438.29** against Agricola Gavioli. The credit chain is **acknowledged by the trustee in the current lawsuit** — it is not in dispute.

2.2 Foreclosure and bankruptcy (2018–2019)

- **28.02.2018**: foreclosure auction of the Chianciano property (RGE 187/2015 at Tribunale di Siena). Base price €616,000.
- **30.05.2018**: Agricola Gavioli declared bankrupt (Fallimento n. 35/2018; curator Dott. Stefano Scarpellini).
- **26.06.2018**: decree of transfer — the property is assigned to Naissance for €616,000.
- **14.12.2018**: Avv. Paolo Fiorilli, then Naissance's lawyer in Rome, files the **Istanza di Ammissione al Passivo** asking the bankruptcy to admit Naissance's residual claim.
- **2019**: the Delegated Judge admits Naissance for **€572,438.29** as a secured mortgage claim (the €4,761.47 prededuzione for legal fees is excluded).
- **04.04.2019**: the distribution plan of the foreclosure (progetto di distribuzione) is approved by the Enforcement Judge at a hearing. **Not challenged by the trustee or any creditor, and not impugned within the statutory window.**

2.3 The trustee's demand (2025)

- **02.05.2025** and **03.06.2025**: the trustee and his lawyer send formal demands (*diffide*) to Naissance at its London address and to Fiorilli in Rome. Naissance does not respond.
- **01.07.2025**: legal interest begins to accrue on the disputed sum.
- **18.10.2025**: the Delegated Judge authorises the curator to sue.
- **30.12.2025**: Avv. Fabio Finetti, on behalf of the Curatela, files a *Ricorso ex artt. 281-decies and undecies c.p.c.* at Tribunale di Siena, seeking **€57,536.75** plus interest and costs.
- **31.12.2025**: first hearing fixed for 12.03.2026.
- **07.01.2026**: hearing postponed to **14.05.2026 at 10:00**. Costituzione (filing of the defence) due at least 10 days before — i.e. by **04.05.2026**.

2.4 Lawyers involved

Role	Person
Defendant's director	Grahame McGirr
Defendant's current lawyer	Avv. Primo Belardi, Chianciano Terme
Defendant's 2018 lawyer	Avv. Paolo Fiorilli, Rome
Claimant's lawyer	Avv. Fabio Finetti, Siena
Claimant (Curatore)	Dott. Stefano Scarpellini, Siena
Judge	Dott. Marianna Serrao

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3. The trustee's claim — how the €57,536.75 number is built

The trustee's arithmetic is straightforward:

Component	€
Property assigned to Naissance (26.06.2018 decree)	616,000.00
Further sums distributed at the 04.04.2019 hearing (property "fruits" and legal fees, €10,043.04 higher distribution + €3,932 legal expenses not admitted in bankruptcy)	13,975.04
"Refund" of procedural advance previously paid by Naissance	30,000.00
Trustee's figure for what Naissance received	**629,975.04**
Less: what Naissance was admitted for in the bankruptcy	(572,438.29)
= claim	**57,536.75**

The trustee's **legal theory** is that even though the foreclosure distribution was approved by the Enforcement Judge in April 2019, it was only **provisional**. Under Italian law (**art. 110 Legge Fallimentare**, now arts. 230–232 CCII), the *final* ranking of a secured creditor is done inside the bankruptcy; anything received above that final ranking is an undue payment (*indebito oggettivo* under art. 2033 c.c.) and must be returned to the estate.

The two Italian Supreme Court cases cited — **Cass. 23482/2018** and **Cass. 12673/2022** — do support this general proposition. **Art. 41 TUB** is cited as the procedural basis that allowed Naissance to continue the foreclosure after the bankruptcy was declared, but that is a procedural privilege, not a substantive answer on final ranking.

Bottom line: the trustee's claim is legally coherent. It cannot be swept aside with "the distribution was final, end of story".

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4. How this report was put together

This is a summary of the analytical process behind the recommendations — so you can see what has been looked at and where the conclusions come from.

4.1 Documents reviewed

The repository contains the following evidence, organised into five source folders:

- **Folder 01** — the email correspondence with Avv. Primo Belardi (your current lawyer), including his 17 April 2026 email setting out his proposed defensive strategy
- **Folder 02** — your own position emails to Belardi and the 2018 *Istanza di Ammissione al Passivo* prepared by Avv. Fiorilli
- **Folder 03** — the FX receipts / wire-transfer evidence for the €57,000 (26.04.2018) and €20,000 (01.05.2018) payments to Argo Ge.Re.Cre.
- **Folder 04** — screenshots of the earlier AI (ChatGPT) review
- **Folder 05** — the full trustee's Ricorso (19 pages), original Italian + English translation, court orders, service records

4.2 The three existing viewpoints at the start

Three independent views of the case existed before this analysis:

1. **ChatGPT** (from your earlier screenshots) — broadly reassuring: "the distribution was final, the claim is weak, settlement shouldn't be necessary."
2. **Avv. Belardi** (17.04.2026 Italian email) — professionally cautious: the case has real legal foundation; his proposed line is (a) argue *errore materiale* in Fiorilli's 2018 Istanza, (b) subordinately, pursue Fiorilli's professional-indemnity insurer, (c) open settlement talks in parallel.
3. **Your own instinct** (30.03.2026 email to Belardi) — that the distribution is final, the €1.188m underlying credit is what was owed to Naissance and only about half has ever been recovered, and the trustee's gross-difference approach is not sustainable.

4.3 Late additions (18 April 2026)

On Saturday 18 April 2026 you forwarded **13 further email PDFs** to the project and sent a **voicemail** and **WhatsApp messages** clarifying the cost picture. These added material new information:

- **The full text of Fiorilli's 14.12.2018 Istanza** (this turned out to be internally inconsistent — clause 3 cites €1,118,438.29 while clause 4's parenthetical cites €1,188,438.29; only the latter reconciles arithmetically with the €572,438.29 residual).
- **A third FX wire** — €30,000 to Argo Ge.Re.Cre. on 05.06.2018. Your WhatsApp clarified that **this wire is the same payment as one of the two pre-auction cheques** (the €30k cheque), not an additional outflow. So the total documented outflows are €57,000 + €20,000 + €30,000 + €45,000 = **€152,000**, not €182,000 as might otherwise look on the face of it.
- **Cheque images** for €30,000 and €45,000 — with the reasons for each payment shown.
- **A cost-breakdown spreadsheet** totalling €57,110 for the Gavioli proceedings — which matches the €57,000 wire of 26.04.2018 almost exactly.
- **Three contemporaneous pre-auction offers / expressions of interest** for the Chianciano property: €550,000 (6.9.2017), €620,000 (12.9.2017), and an accepted pre-auction transaction at €630,000. Your voicemail confirmed that you didn't even remember these bids — which actually **strengthens** them as evidence, because it means they aren't manufactured; they are genuine period data showing the €616,000 auction price was fair.

4.4 External cross-check

After the internal analysis was complete, the draft report was sent to ChatGPT for an independent review. ChatGPT correctly identified that the very first draft narrative had drifted away from the actual claim arithmetic (€629,975.04 − €572,438.29 = €57,536.75) and was framing the case around a less accurate "€130k prededuzione surplus" story. That feedback was applied. This is the corrected version.

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5. Key findings — what the documents actually show

Five findings emerge when the source documents are read together:

5.1 The trustee's arithmetic is correct on the face of it

€629,975.04 received minus €572,438.29 admitted = €57,536.75 claimed. That math is in the Ricorso itself. The trustee's cited case law (Cass. 23482/2018 and 12673/2022) does support the general proposition that foreclosure distributions to a mortgage creditor are *provisional* pending final bankruptcy ranking. Any strategy that does not engage with this proposition directly will lose.

5.2 Fiorilli's 2018 Istanza is internally inconsistent

Reading the full text of the 14.12.2018 Istanza (Fiorilli's application to admit Naissance to the bankruptcy's liabilities):

- **Clause 3** asserts a credit of **€1,118,438.29**.
- **Clause 4's parenthetical** writes out "€572,438.29 (**1,188,438.29** sottratta la somma di assegnazione pari ad euro 616,000.00)".

Only €1,188,438.29 reconciles arithmetically (1,188,438.29 − 616,000 = 572,438.29). €1,118,438.29 − 616,000 = €502,438.29, which matches nothing. The **documents attached to the Istanza** (the 28.07.2017 credit-assignment contracts) consistently show €1,188,438.29. Clause 3 is therefore almost certainly a typo.

This is a **real internal inconsistency** in the document the trustee relies on. It gives Belardi's "*errore materiale*" (clerical error) argument genuine substance — more substance than a first reading suggests.

5.3 The €30,000 "refund" is almost certainly double-counted — and this is the single biggest quantum lever, but it is not automatic

The trustee includes **€30,000** in his €629,975.04 "received" figure, calling it a "refund of procedural expense advance previously paid by Naissance". The documentary record shows:

- On **05.06.2018** Naissance issued a €30,000 cheque — executed as an FX wire to Argo Ge.Re.Cre. the same day (same payment, not two separate outflows).
- The 04.04.2019 distribution plan returned €30,000 to Naissance.

Those are almost certainly the same €30,000 — money out in 2018, same money back in 2019. In pure economic terms, it is not a payment from the estate to Naissance. The strong argument is that including it in the restitution claim is **double-counting**.

This is the single biggest quantum point. If it lands, the claim drops from **€57,536.75 to €27,536.75** — more than half gone without winning anything else.

Important honesty note, though. The trustee has an available counter-argument: "yes, it was a refund of Naissance's own money, but it was still *money received through the procedure*, so for ranking purposes it forms part of the total sums distributed". The real legal question therefore becomes:

> *Is restitution under art. 110 L.F. / art. 2033 c.c. calculated on gross flows through the procedure, or on the net economic benefit to the creditor?*

That question is not trivial, and is judge-dependent. The €30,000 double-count argument is **very strong but not guaranteed**. It should be treated as a high-probability quantum reduction, not a certainty. Belardi must put this point front and centre, with full authority on how Italian courts treat the gross-vs-net question.

5.4 Pre-auction offers confirm the €616k price was fair

Three contemporaneous data points sitting in the evidence bundle:

- 06.09.2017: expression of interest at **€550,000**.
- 12.09.2017: upgraded expression of interest at **€620,000**.
- Accepted pre-auction transaction at **€630,000** (per your 18.04.2026 email).
- Auction clearing price: **€616,000**.

Your voicemail noted that you didn't even remember the pre-auction offers when they came up — which is useful because it means they aren't manufactured. They are genuine period evidence. The €616,000 auction price is consistent with market. There is no "hidden value" narrative available to the trustee.

5.5 Naissance's costs are well evidenced

Total documented outflows to Argo Ge.Re.Cre. and to the procedure:

Date	Mode	€	Supporting evidence
26.04.2018	FX wire	57,000	Thomas Exchange confirmation; ties to €57,110 Gavioli cost schedule
01.05.2018	FX wire	20,000	Thomas Exchange confirmation
05.06.2018	€30,000 cheque, executed as FX wire (same payment)	30,000	Cheque image + FX confirmation
Pre-auction	€45,000 cheque	45,000	Cheque image
Total		**~152,000**	

Your recollection of "around €130,000+" of costs is therefore fully in the documents. This matters because (a) it supports the fairness narrative around the auction price, and (b) it informs the €30k double-counting attack.

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6. The four approaches in detail

Each of the four possible ways to respond is set out below with its own strengths, weaknesses, and an independent estimate of the probability of a good outcome if it is pursued as the primary strategy.

6.1 Approach A — Your own instinct ("I'm owed €1.188m, I only got back about half")

The position

Naissance acquired a credit of **€1,188,438.29** through the 2017 double assignment. Against that, only about half has ever been recovered — **€616,000** via the 2018 property assignment and roughly **€130,000** via the subsequent distribution. The residual **€572,438.29** admitted to the bankruptcy is still unpaid. How, on those facts, can the trustee now claim €57,536.75 back as a "surplus"? The estate still owes *you* several hundred thousand euros.

Why this feels right — and commercially, it is. Most non-lawyers would reach exactly the same conclusion. It is a legitimate point.

Why it cannot be the primary legal defence — four reasons.

1. **Italian insolvency law treats the two accounts separately.** The surplus-restitution duty under Cass. 23482/2018 operates on a specific accounting exercise (foreclosure proceeds vs admitted secured claim). Whether the guarantor is globally made whole on its underlying mortgage credit is a different question, answered through the residual *chirografario* (unsecured) ranking — which pays cents on the euro, not euro-for-euro.
2. **Art. 56 L.F. statutory set-off does not reach.** Compensation in bankruptcy requires both debts to exist before the bankruptcy declaration and to be certain, liquid, and payable. The trustee's restitution claim arose **after** the bankruptcy and from the distribution plan itself.
3. **The admitted €572k mortgage claim ranks pari passu** with other unsecured creditors in the residual distribution. It does not function as a euro-for-euro offset against a specific surplus-restitution duty.
4. **Pleading this as the headline defence signals misunderstanding of Italian insolvency mechanics** and risks losing the judge's sympathy for the genuinely strong quantum arguments in Approach D.

What this argument IS good for. It is an **excellent settlement lever** ("if you press us for €57k we will formally reassert a €572k residual"), and a legitimate **equitable plea** supporting the main defence.

Probability of winning if pleaded as primary defence: <10%. Probability if pleaded correctly as counterclaim/settlement lever alongside Approach D: adds ~€10–15k of settlement discount.

6.2 Approach B — ChatGPT's line ("the distribution plan is final, the claim is weak")

The position

The €616,000 property assignment happened in June 2018. The distribution plan was approved by the Enforcement Judge on 04.04.2019 without challenge and was never impugned. Six years later, the trustee cannot reopen it. The claim is weak; settlement shouldn't be necessary.

Pros.

- Correctly identifies that the **finality of the 04.04.2019 distribution plan** is a real legal principle and is the right place to attack.
- Simple to plead; low legal-fee footprint.
- Correctly instinctive that Naissance is the senior secured creditor and that the trustee's gross-difference approach is oversimplified.

Cons.

- **Ignores Cass. 23482/2018 and 12673/2022** — the exact Supreme Court rulings the trustee pleads. Those rulings say that a mortgage creditor who continues foreclosure after bankruptcy receives sums *provisionally* pending final bankruptcy ranking, and that the finality of the foreclosure distribution does **not** automatically protect the creditor. Acting on a 70–85% confidence built on the wrong legal premise would lead to underpreparation.
- **Misses the strong quantum attacks** (especially the €30,000 double-count — see 5.3 above).
- **Builds no settlement groundwork.** If the finality argument fails in court, there is no Plan B.

Probability estimate: full win ~10–15%, partial win ~15–20%, full loss ~65–75%. **Unsafe to rely on in isolation.**

6.3 Approach C — Avv. Belardi's line ("errore materiale + Fiorilli PI fallback")

The position (from Belardi's 17.04.2026 email)

Primary: rely on the documents attached to Fiorilli's 2018 Istanza (which consistently show €1,188,438.29) and ask the court to read the Istanza's €577,199.76 figure as a clerical error (*errore materiale*), using "common sense" (*comune buonsenso*). Subordinate: if the error argument fails, pursue Fiorilli's professional-indemnity insurer. Tertiary: open settlement talks with the curator.

Pros.

- The Istanza **is** genuinely internally inconsistent (clause 3: €1,118,438.29 vs clause 4 parenthetical: €1,188,438.29 — only the latter reconciles). Belardi's clerical-error argument is therefore on **much firmer ground** than it might first appear.
- Preserves the Fiorilli professional-indemnity route as a fallback.
- Professionally credible in front of the judge.
- Belardi is a local lawyer who knows the Siena court.

Cons.

- **The 2019 admission order** for €572,438.29 is now **res judicata** (final as between the parties) regardless of any typo in the underlying application. A clerical error in the application does not automatically unpick the final order.
- **Addresses the framing, not the substantive art. 110 L.F. principle** the trustee relies on.
- **Missing the finality argument** (the strongest substantive attack) and the **€30,000 double-count** (the strongest quantum attack).
- **Leaves value on the table.** Executed as-is, this produces a mid-range outcome when a better one is achievable.

Probability estimate: full win ~15–20%, partial win ~25–35%, full loss ~45–60%. **Right direction, needs layering.**

6.4 Approach D — Recommended (three focused battlegrounds + Belardi's errore materiale as supporting + parallel settlement)

The position

A focused defence filed as a single memoria by 04.05.2026, organised around the one question that actually matters: *did Naissance receive more than €572,438.29 through the procedure?* Three battlegrounds are run together as the core of the defence, with Belardi's clerical-error argument and a parallel settlement channel as supporting infrastructure.

The three core battlegrounds:

- **Battleground 1 — The €30,000 accounting treatment (the headline quantum point).** Same €30k went out in June 2018 and came back at the 2019 distribution. The legal question is whether art. 110 L.F. / art. 2033 c.c. restitution is calculated on gross flows or net economic benefit. Belardi must plead this front and centre, with full authority on how Italian courts treat gross-vs-net in this context. **If this lands, claim drops from €57,536.75 to €27,536.75.** It is a very strong argument but judge-dependent — not a slam dunk.

- **Battleground 2 — The rigidity of the €572,438.29 admission.** The 2019 admission order is res judicata in formal terms. But the Istanza's clause 3 vs clause 4 inconsistency (€1,118,438.29 vs €1,188,438.29) and the fact that all the *attached* documents in the bankruptcy file consistently show €1,188,438.29 raise a legitimate question about the weight of that admission in a restitution context. The finality of the 04.04.2019 distribution plan fits here too — but crucially, the defence cannot rely on timing alone. Belardi must **distinguish Cass. 23482/2018 and 12673/2022 on their facts**, not simply invoke finality as a standalone principle; those cases explicitly hold that foreclosure distributions are provisional pending final ranking.

- **Battleground 3 — Component-by-component challenge to the trustee's €629,975.04 arithmetic.** Beyond the €30,000, two further lines:

- **€3,932** that the trustee himself classifies as "legal expenses not admitted to the bankruptcy liabilities" — by definition outside the concorso and therefore outside the restitution duty (moderate-strength).
- **€4,761.47 prededuzione** wrongly excluded by the G.D. in 2019, to be raised as an equitable offset (weak / discretionary; the court may or may not entertain it).

These three quantum items do not stack cleanly. Realistic expectation is that the €30,000 lands (probably — subject to the gross-vs-net question), and one of the two smaller items lands. The claim realistically ends up in the **€25,000–€35,000 range**, not in the sub-€20k range that naive stacking suggests.

Supporting infrastructure:

- **Belardi's errore materiale (supporting, not headline).** The Istanza's clause 3 vs clause 4 inconsistency helps attack the weight of the admission under Battleground 2. Use as a strand, not as the primary plea.
- **Parallel settlement channel.** Authorise Belardi to open it as soon as the costituzione is filed. Opening: **€15–20k**. Target: **€25–35k**. Walkaway: **€45k**.
- **Fiorilli PEC diffida prepared this month.** Not pleaded in this proceeding, but drafted now so it can go out if limitation matters. This is your recovery path if the main case is lost — timing matters.

Pros.

- Directly engages Cass. 23482/2018 and 12673/2022 on their facts rather than ducking them.
- Built around the one question that matters legally, not a sprawling theory war.
- The €30,000 double-count alone is a potential >50% quantum win.
- Rooted in documentary evidence already on the record.
- Settlement channel gives a second route to a good outcome.

Cons.

- More expensive to run than Belardi-as-is.
- Requires Belardi to research how Italian courts treat gross- vs-net restitution under art. 2033 c.c. / art. 110 L.F. in this specific context.
- Requires Belardi to pull the full text of both Cassazione cases and genuinely distinguish them on their facts.
- Requires you to commit the walkaway ceiling (€45k) privately.
- Not a silver bullet — a material loss tail remains.

Probability estimate (grounded, incorporating external review): full win 10–20%, partial win 50–60%, full loss 25–35%. Realistic target outcome: settlement or ruling at €25–35k all-in.

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7. What to do this week

1. **Send the drafted email to Avv. Belardi** (`Draft email to Belardi.eml` with an English translation PDF alongside). The email:
2. approves Belardi's strategic direction;
3. sharpens the defence around the **three focused battlegrounds** (€30k accounting / rigidity of €572k admission / component-by-component arithmetic attack);
4. authorises him to open parallel settlement talks;
5. requests his written probability estimate on each battleground, his drafting timetable, and confirmation of the procedural vehicle.
6. **Ask Belardi to confirm five points** before drafting:
7. that 04.05.2026 is the costituzione deadline and 14.05.2026 is the hearing;

8. whether the correct pleading is a *memoria difensiva* or a *comparsa di costituzione e risposta* under the rito semplificato (art. 281-decies c.p.c.);
9. the full text of **Cass. 23482/2018** and **Cass. 12673/2022** — so we know which facts are distinguishable;
10. whether the 04.04.2019 distribution-plan hearing minutes show the curator was present or properly notified;
11. **his authority on how Italian courts treat gross-vs-net restitution** under art. 110 L.F. / art. 2033 c.c. — this is the decisive legal question for the €30,000 double-count.
12. **Authorise Belardi to prepare a PEC diffida to Avv. Fiorilli this month.** Draft it now, ready to go. Limitation timing matters. Whether to serve it before the main case resolves is a tactical call — but the draft must exist.
13. **Agree a private settlement mandate:** opening €15–20k, target **€25–35k**, walkaway **€45,000** all-in. (Total exposure if we lose outright is roughly €70–85k — capital + interest + costs + curator's legal fees — so €45k is well inside the break-even zone.)
14. **Do NOT join Fiorilli to this proceeding.** Preserve the professional-indemnity route for after the Naissance defence is filed and the curator's response is seen.

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8. Confidence — what is solid, what needs Belardi's sign-off

Verified against the source documents directly:

- The claim arithmetic (€629,975.04 − €572,438.29 = €57,536.75).
- The case reference (R.G. 2505/2025; Fallimento n. 35/2018 R.G.).
- The defendant (Naissance UK Ltd, not Grahame personally).
- The cost outflows (€57k + €20k + €30k [= cheque] + €45k [cheque] = €152k, with the €30k wire and €30k cheque confirmed by your WhatsApp as the same payment).
- The market-value evidence (three pre-auction data points).
- The Istanza's internal inconsistency (clause 3 vs clause 4).

Needs Belardi's written confirmation before the defence is filed:

- Full text of **Cass. 23482/2018** and **Cass. 12673/2022** — we have taken them at face value because they are pleaded by the trustee; nobody on our side has pulled the judgments.
- The procedural vehicle and filing deadline (above).
- Whether the **€30,000 accounting** in the trustee's Ricorso attachments confirms the double-count narrative.
- His own **numeric probability estimate** on each of the four tracks, so you can make an informed settlement call.

Residual risks that the recommended strategy does not eliminate:

- The trustee could **pivot to revocatoria fallimentare** (art. 67 L.F. / 166 CCII) or to **indebito oggettivo** (art. 2033 c.c.) at the hearing. The defence is drafted to be robust to such a pivot, but it can't be pre-empted completely.

- **Art. 2467 c.c. postergazione** (if Naissance were treated as a financing shareholder) is not expected to apply to a foreign corporate assignee of a bank credit, but it is worth asking Belardi to exclude it formally.
- The **admission order of 2019** is res judicata and will not be reopened. Any defence that depends on reopening it fails.

Confidence level: moderate on outcome, moderate-to-high on facts. The facts have been traced back to the Ricorso, the Istanza, the FX confirmations, the cheque images, and your own WhatsApp confirmations. The strategy is as good as the information available supports. Belardi's sign-off on the four procedural and case-law points above is what will move confidence from moderate to high.

This report is a working document prepared to support your instructions to Italian counsel. It is not itself legal advice. Belardi's written opinion, once received, supersedes it.

Final comparison — the four approaches side-by-side

#	Approach	Pros	Cons / why it fails on its own	My estimate of probability of success	Verdict
A	**Your own instinct** "I'm owed €1.188m, only got back ~half"	• Facts documented & accepted by trustee • Credit of **€1,188,438.29** (2017 assignment) • Only **€616k** auction + **~€130k** riparto recovered • **€572,438.29** admitted to stato passivo, still unpaid • Strong equitable force & common-sense appeal • Excellent settlement lever	• Italian insolvency law treats surplus-restitution as **separate** accounting from guarantor's make-whole position • Art. 56 L.F. set-off out of reach — trustee's claim arose post-bankruptcy • Admitted €572k ranks *pari passu* — not a euro-for-euro offset • Pleading as primary defence signals misunderstanding of Italian insolvency mechanics • Risks losing judge's sympathy for the Track 2 quantum arguments	**<10%** as primary Adds **~€10–15k** of settlement discount if used as counterclaim alongside Approach D	**Counterclaim / settlement lever only.**
B	**ChatGPT** "Plan is final — claim is weak"	• Correct instinct on the 04.04.2019 distribution plan • Riparto was court-approved — finality is a real Italian-law principle • Simple to plead • Low legal-fee footprint	• Ignores Cass. 23482/2018 & 12673/2022 — the rulings the trustee relies on • Those rulings say finality does **not** automatically protect the guarantor • Misses the €30k double-count — the biggest quantum lever • Builds no settlement groundwork if the finality argument fails	Full win **~10–15%** Partial win **~15–20%** Full loss **~65–75%**	**Unsafe.**
C	**Avv. Belardi** "Errore materiale" + Fiorilli PI fallback	• The Istanza **is** internally inconsistent (clause 3: €1,118,438.29 vs clause 4: €1,188,438.29) • Attached documents all show €1,188,438.29 • Preserves Fiorilli professional-indemnity route • Professionally credible; Belardi knows the Siena court	• The 2019 admission order for €572,438.29 is res judicata regardless of any typo • Addresses framing, not substantive art. 110 L.F. principle • Missing the finality argument & the €30k double-count • Leaves value on the table	Full win **~15–20%** Partial win **~25–35%** Full loss **~45–60%**	**Right direction, needs layering.**
D	**Recommended** Three focused battlegrounds + errore materiale supporting + parallel settlement	• Built around the **one question that matters**: did Naissance receive more than €572,438.29? • Battleground 1: **€30k accounting** - if it lands, claim drops to €27,536.75 • Battleground 2: rigidity of €572k admission + distinguishing Cassazione on facts, not timing • Battleground 3: component-by-component challenge to €629,975.04 • Belardi's errore-materiale retained as supporting strand • Fiorilli PEC diffida prepared this month, held ready • Parallel settlement channel at **€25–35k** target	• Higher legal fees than Belardi-as-is • Requires Belardi's authority on gross-vs-net restitution under art. 110 LF / art. 2033 cc • Requires Belardi to distinguish Cassazione 23482/2018 & 12673/2022 on their facts, not invoke finality alone • €30k argument is strong but judge-dependent, not a slam dunk • Three quantum cuts don't stack cleanly - realistic landing is €25-35k, not sub-€20k • Material loss tail remains	Full win **10–20%** Partial win **50–60%** Full loss **25–35%** Target: **settle €25–35k all-in**	**Recommended.**

Bottom line: the highest-probability route is **Approach D** — three focused battlegrounds (the €30,000 accounting treatment is the single highest-leverage point, but judge-dependent; the rigidity of the €572,438.29 admission; and a component-by-component challenge to the trustee's €629,975.04 arithmetic). Belardi's errore-materiale argument is retained as a supporting strand. A parallel settlement channel targets **€25–35k all-in**. Your own instinct (Approach A) is preserved as a counterclaim and settlement lever. Fiorilli is kept in reserve via a PEC diffida prepared this month, not joined to this proceeding.

Realistic probability: **full win 10–20%, partial win 50–60%, full loss 25–35%**. This case will in practice turn on the €30,000 gross-vs-net question and how rigidly the court treats the €572,438.29 admission. Everything else is supporting.